

22STCV41024 22STCV41024

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-08-18

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Case Number: 22STCV41024 Hearing Date: August 18, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: August 18, 2026

Case Name: Baca III v. Knights of Columbus, et al.

Case No.: 22STCV41024

Matter: Motion to Vacate Arbitration Award

Ruling: The Motion is denied.

Defendant to give notice.

The Court encourages all parties to appear remotely via LA

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On July 9, 2026, the Court granted Defendant Knights of Columbus' petition to confirm an arbitration award against Plaintiff Ben Baca III.

Plaintiff again argues that the award should be vacated because (a) the underlying arbitration agreement is unconscionable and (b) the arbitrator failed to disclose a conflict/bias.

Plaintiff's argument as to unconscionability was already rejected on January 9, 2024, and the Court sees no reason to change its conclusion.

Plaintiff cannot demonstrate that the arbitrator's past representation of an unrelated religious entity rises to the level of evident partiality required to vacate an award under Code of Civil Procedure § 1286.2. The standard for bias is objective, and Mr. Baca has failed to establish any direct or substantive connection between the arbitrator's previous work and the parties or issues involved in this specific dispute. Consequently, his challenge amounts to an impermissible attempt to subject a final arbitration award to an after-the-fact attack based on generalized, unsubstantiated claims of bias.

The Motion to Vacate is denied.

Defendant to give notice.